Policy: 2025
Section: 2000 – Instruction

(DRAFT 01-14-21)

PROPOSED POLICY REVISIONS

Information Item

Rationale: As a result of a triennial review, staff recommends updates and clarifications to existing policy language. Additionally, new provisions are added for the "performance" or "display" of copyrighted materials in an online or instructional setting.

Copyright Compliance and License to Publish

The board recognizes that federal law makes it illegal to duplicate or reproduce copyrighted materials without authorization of the copyright holder~~ of the copyright~~, ~~except for certain exempt purposes~~unless an exception applies. District staff may use copyrighted materials only to the extent allowed by law and board policy.

I. Copyright Compliance

A. Severe penalties may be imposed for unauthorized copying or use of copyrighted materials, including audiovisual~~-~~, ~~or~~ print~~ed materials~~,~~-~~ and digital materials ~~and~~ (including computer software), unless the copying or use conforms to ~~the "fair use" doctrine~~an applicable exception.

B. "Fair use" exception. Staff may duplicate or reproduce copyrighted materials without prior permission of the copyright holder for the purpose of teaching, criticism, comment, news reporting, scholarship, or research under the "fair use" doctrine. Copyright law limits the number of copies, portion of a copyrighted work that may be duplicated or reproduced, and circumstances under which staff may make multiple copies of copyrighted materials under the "fair use" doctrine. These limitations shall be set forth in the district's copyright procedure and must be observed by staff at all times. ~~RUnder the "fair use" doctrine, unauthorized reproduction of copyrighted materials is may be permissible without prior permission of the copyright holder for such purposes as criticism, comment, news report, teaching, scholarship or research. If duplicating or changing a product is to fall within the bounds of fair use, theseif it is a "fair use" in consideration of the following four (4) standards must be met for any of the foregoing purposesfactors:~~

~~The purpose and character of the use. The use must be for the such purpose ofs as teaching, criticism, comment, news report, scholarship or researchor scholarship. Use may not be solely for the purpose of entertainment; ;~~

~~The nature of the copyrighted work. Staff may make single copies of: book chapters for use in research; instruction or preparation for teaching; articles from periodicals or newspapers; short stories, essays or poems; and charts, graphs, diagrams, drawings, cartoons or pictures from books, periodicals, or newspapers in accordance with these guidelinesGreater copyright protections are generally afforded to creative works (such as art, music, poetry, and film), unpublished materials, and materials that were created specifically for the educational market;~~

~~The amount and substantiality of the portion used. Copyright law limits the number of copies and portion of a copyrights work that may be copied under the "fair use" exception. These limits~~

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~~shall be set forth in the district's copyright procedures and may not be exceeded. Copying the whole of a work cannot be considered fair use; copying a small portion may be if these guidelines are followed; and~~

~~The effect of the use upon the potential market for or value of the copyrighted work. If~~ Use of the ~~copyrighted materials may not be permitted if the work is reasonably available for purchase or licensing and its use~~ results ~~ining economic loss to the copyright holder can be shown, even making a single copy of certain materials may be an infringement, and making multiple copies presents the danger of greater penalties.~~

C. Exception for "face-to-face" teaching activities. Staff may show a performance of or display lawfully obtained copyrighted materials in the course of face-to-face (i.e., in-person) teaching activities without prior permission of the copyright holder.

D. Exception for "online" teaching. Use of copyrighted materials during online or remote teaching may be lawful without prior permission of the copyright holder if the following four (4) criteria are met and students are provided notice that materials used in connection with the course may be subject to copyright protection:

1. The performance or display is made by, at the direction of, or under the actual supervision of an instructor as an integral part of a class session and analogous to the type of performance or display that would take place in a live classroom setting;

2. The performance or display is directly related and of material assistance to the teaching content of the transmission;

3. The transmission is made solely for, and, to the extent technologically feasible, the reception of such transmission is limited to students officially enrolled in the course and staff, as part of their official duties; and

4. Technological measures are used that reasonably prevent the retention of the copyrighted materials by recipients for longer than the class session and the unauthorized further dissemination of the copyrighted materials by recipients.

E~~C~~. ~~While the~~The district encourages ~~its staff to~~the enrichment of ~~the~~ student learning ~~programs by making~~through ~~proper~~ permissible use of supplementary materials; however,~~,~~ it is the responsibility of ~~district~~ each staff member to ~~abide by~~comply with the district's copying procedures and ~~obey the requirements of the~~copyright law.

F~~D~~. Any staff member who is uncertain as to whether reproducing or using copyrighted material complies with the district's procedures or is permissible under the law should contact the ~~superintendent~~ building administrator or the person designated as the ~~copyright compliance officer~~ teacher librarian. The ~~latter~~ designated staff member or ~~copyright compliance officer~~teacher librarian will also assist staff in obtaining ~~proper authorization~~permission to copy or use ~~protected~~ copyrighted material when such authorization is required.

G~~E~~. The superintendent or designee will notify the Federal Copyright Office or the district's agent for receiving notifications that users of the district's Internet network have infringed copyright, as required by law.

II. License to Publish

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A. The district encourages staff members to develop original materials or products that will contribute to the welfare of students and/or the professional growth of the staff member.

B. Procedures supporting this policy:

1. Protect the rights and interests of staff members who are creative in their assignments;

2. Determine ownership of employee-created materials and products, including copyrights and other intellectual property (IP); and

3. Ensure that the resources of the district expended in production and development of materials or products are properly protected.

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Legal References: P.L. 105-304, Digital Millennium Copyright Act of 1998
P.L. 94-553, Federal Copyright Law of 1976 (U.S. Code, Title 17)

Adopted: May 8, 2018

Revised: _____

VPS